

**MOLLOY AAUP
ADVOCACY
CHAPTER
MEETING**

Monday October 6th
2025



AAUP Local 6741 of the AFT

- **Weekly AAUP Media Clips**
- **Monthly meetings and workshops**





Updates

- In July, Michael DeCesare, Senior Program Officer Department of Academic Freedom, Tenure, and Governance provided an extensive review and analysis of the Molloy Faculty handbook.
 - Recommendations were forwarded to Faculty Council.
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***Understanding the possibilities
for and the barriers to
unionization at private colleges
and universities.***
By Risa L. Lieberwitz



NLRB v. Yeshiva University

- US Supreme Court issued its 1980 decision in *NLRB v. Yeshiva University*, holding that most tenure-track and tenured faculty members at private colleges and universities are “managerial employees”—a category excluded from coverage and protection under the National Labor Relations Act (NLRA).
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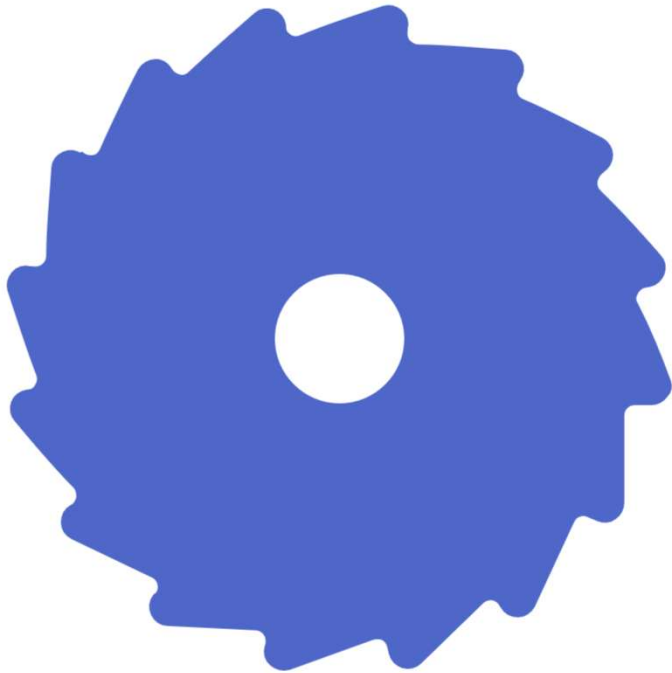
Pacific Lutheran University case

- In 2014, the National Labor Relations Board (NLRB) decided the *Pacific Lutheran University* case, holding that *Yeshiva* should be interpreted in the context of the increasing corporatization of higher education since 1980.
 - The *Pacific Lutheran* decision would thus open the door to expanded unionization of private college and university faculty, particularly for the growing ranks of **non-tenure-track faculty**.
 - Decision from 2014 that held the **university's adjunct faculty** were employees under the National Labor Relations Act and thus eligible to unionize, rejecting the university's claims of managerial status and religious exemption.
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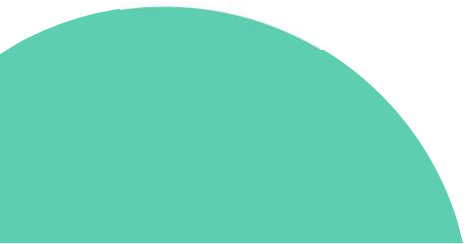


The NLRB vs. Bethany College. 2020

- National Labor Relations Board (NLRB) has ruled that it lacks jurisdiction over faculty at religious colleges and universities. As a result of the decision, religiously affiliated nonprofit colleges and universities that hold themselves out as religious institutions are exempt from the agency's jurisdiction over faculty.
 - The NLRB's decision in *Bethany College* **reverses its 2014 ruling in *Pacific Lutheran University*** (*parts that apply to religious institutions*).
 - NLRB is not fully constituted now. The NLRB requires a three-member quorum to issue decisions – currently only has 2.
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•Options?





Winning voluntary recognition

- Winning voluntary recognition means persuading your administration to recognize the statutory rights of the bargaining unit you present if and when you demonstrate majority support from that bargaining unit.
- University Administration's approval

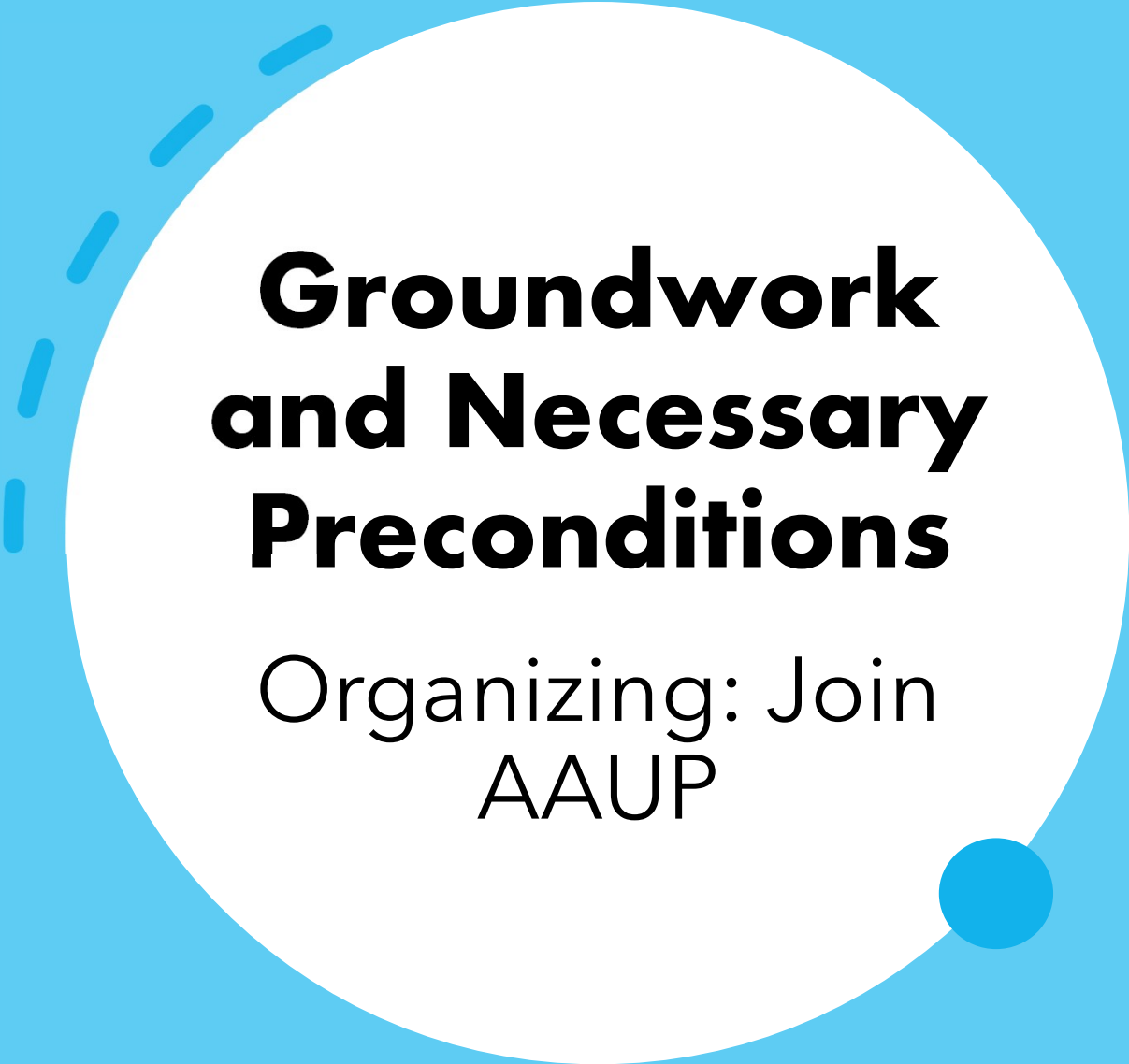




Loyola Marymount University

- Last year **non-tenure track faculty members** at Loyola Marymount University voted in favor of certifying their union. But last week, the administration not only walked away from the bargaining table, but said it would no longer recognize the union.
- The union filed a complaint with the NLRB in response, but experts say given the current political climate, the board and the courts will likely side with the university.





Groundwork and Necessary Preconditions

Organizing: Join
AAUP



Organize Every Campus Campaign

- Unifying Molloy AAUP with the larger AAUP
 - Be concerned with issues regarding higher education as a whole.
 - Other Advocacy Chapters
 - NY State Conference
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• Questions/Discussion



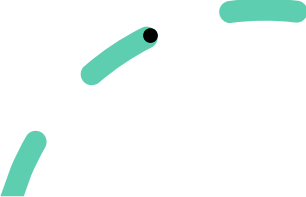
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- **Key steps in the process**
 - **1. Gather factual evidence**
 - The core of the case rests on demonstrating the day-to-day realities of the employees' jobs. The organizing union or the university's employees must collect extensive evidence showing that they lack the authority to exercise managerial functions. Key areas to document include:
 - **Academic programs:** Employees should show they do not have final authority over curriculum development, degree requirements, or academic standards.
 - **Enrollment management:** Evidence should demonstrate that employees do not determine admission standards, class sizes, or enrollment targets.
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- **Finances:** Information should prove that employees do not control institutional budgets, set tuition rates, or approve major financial expenditures.
 - **Personnel policies:** Documentation should show that employees do not hire, fire, promote, or discipline other employees, and they do not determine compensation or benefits.
 - **Highlight limitations on authority**
 - A successful argument often focuses on the limits of an employee's perceived influence.
 - For example, a faculty member may sit on a departmental committee, but evidence can show that their recommendations are often overridden or are simply advisory. A strong case against managerial status proves that any decisions made by the employees are ultimately subject to review and approval by higher-level administrators.
 - 3. Challenge the university's claims
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- If a university asserts that certain employees are managers, the union and employees must specifically rebut those claims. Examples of challenges include:
 - **Challenging the "effective control" standard:** Argue that while employees may be consulted on policy decisions, their input does not amount to "effective control" or "determinative recommendations," which is a requirement for managerial status.
 - **Focusing on the distinction between professional judgment and management:** An employee's professional expertise, like a professor selecting a course textbook, is not a managerial act. The argument must show that employees exercise their professional skills, not the authority to implement or control institutional policy.
 - 4. File a representation petition
 - A union seeking to represent university employees files a Representation Petition (RC) with the appropriate NLRB Regional Office. The petition describes the bargaining unit of employees the union seeks to represent. This begins a formal process involving a hearing where both the union and the university present evidence to an **NLRB hearing officer**.
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Key steps in the process (con't)

- **5. Present evidence in an NLRB hearing**
 - During the hearing, the union and the university present their arguments for or against the employees' managerial status. The hearing officer reviews all the evidence and makes a recommendation to the regional director, who issues a decision. If the regional director finds the employees are not managerial, they will order a secret-ballot election.
 - **6. Navigate potential appeals**
 - The losing party in the regional director's decision can appeal to the full five-member NLRB in Washington, D.C., which may agree to hear the case. The Board's decision on the employees' status is a final administrative ruling. These rulings can sometimes be appealed to a federal court of appeals.
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National Labor Relations Board (NLRB)

- The current members of the National Labor Relations Board are Chair Marvin E. Kaplan and Member David M. Prouty. The Board is currently lacking a quorum, as there should be five members but only two are serving.
 - The NLRB requires a three-member quorum to issue decisions – a threshold established by the U.S. Supreme Court in 2010.
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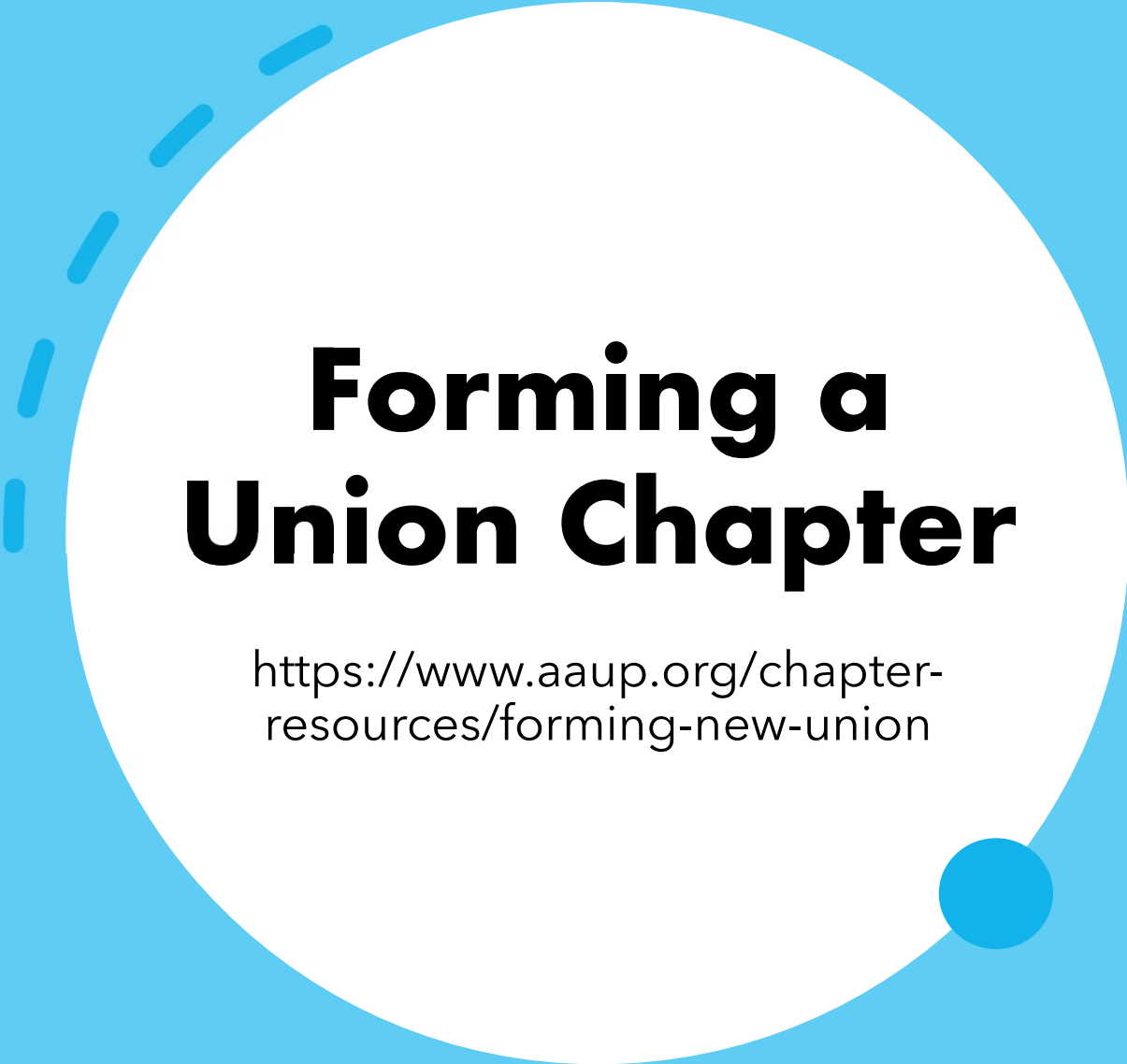


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- Since the 1980 Yeshiva Decision, have there been any **full-time faculty** at private religious institutions that have unionized and have had been recognized by NLRB?
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Utilize the NLRB

- The NLRB determines who qualifies as a "managerial" or "employee" under the NLRA.
 - If the faculty are found to be employees, the unionization effort can move forward.
 - For private-sector faculty who are considered managers and public-sector faculty in states without enabling legislation your best option may be a voluntary recognition campaign.
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Forming a Union Chapter

<https://www.aaup.org/chapter-resources/forming-new-union>

FORMING A UNION CHAPTER

